Payment Instability & Program Design Failure

The Assured Income Contradiction

How AISH's own payment instability creates the housing crisis it is supposed to prevent — and why this is a program design failure, not a recipient failure.

The Alberta Disability System Breakdown — April 2026 | *Addendum to Report Series*

> ***"Everyone tells you to keep three to six months of savings as a buffer. But you cannot build a buffer on income that can be withheld without notice, without appeal, and without a grace period. That is not a personal failure. That is a program design failure — and the government has never had to answer for it publicly."***

The conventional financial advice is simple: maintain an emergency reserve of three to six months of income before any major financial disruption. This advice assumes a baseline — that income arrives reliably, predictably, and with sufficient stability to permit saving. For Albertans on AISH, that baseline does not exist. Payments can be withheld without notice. There is no grace period. There is no emergency buffer program. And there is no appeal mechanism that operates fast enough to prevent eviction when rent is due.

This is not recipients failing to manage money. This is a program designed in a way that structurally prevents the financial behaviour it implicitly expects. The government cannot simultaneously withhold payments without notice AND hold recipients responsible for the consequences of that withholding. One of those positions has to give. This document argues that it must be the program — not the recipient.

SECTION 1: THE WORD 'ASSURED' IS A LEGAL COMMITMENT

The Assured Income for the Severely Handicapped program derives its name from a government promise. 'Assured' is not a marketing term. It is a program representation — an implicit undertaking by the Government of Alberta that recipients could rely on this income as stable, predictable, and continuous.

> *"Assured: made certain; guaranteed." — Oxford English Dictionary*

The documented reality of AISH payment delivery contradicts this representation in every material respect:

WHAT 'ASSURED' MEANS	WHAT AISH ACTUALLY DELIVERS
Payments arrive reliably each month	Payments can be withheld at any time without advance notice to the recipient

WHAT 'ASSURED' MEANS	WHAT AISH ACTUALLY DELIVERS
Recipients can plan around their income	No statutory requirement for written notice before withholding
Disruptions have a documented process	No formal grace period — rent is due regardless of whether AISH pays
Recipients can appeal payment failures	Appeal mechanisms do not operate on a timeline that prevents eviction
Income stability permits basic financial planning	Structural impossibility of savings accumulation on below-poverty-line income with unpredictable payment schedule
Dignified, dependable support	Landlords write AISH-specific eviction clauses because the income is known to be unreliable — the program's instability is priced into lease terms

FINDING: *The Government of Alberta named this program "Assured." The program does not deliver what that word means. This is not a semantic argument. It is an evidentiary one — and the evidence is in the program's own design.*

SECTION 2: THE CAUSATION CHAIN THE GOVERNMENT HAS NEVER ANSWERED FOR

The standard framing of AISH recipient housing instability treats it as a downstream consequence of low income. That framing is incomplete. The causation chain is sharper, more direct, and more damaging — and it runs directly from program design to eviction.

2.1 The Chain

STEP	WHAT HAPPENS
Step 1 — AISH PAYMENT WITHHOLDING IS UNPREDICTABLE	Payments can be withheld at any time. Recipients receive no statutory advance notice. There is no documented public standard for when or why withholding occurs.

STEP	WHAT HAPPENS
Step 2 — LANDLORDS KNOW THIS	Alberta's private rental market — which has no provincial rent cap — operates with full awareness of AISH payment instability. This is not a secret. It is documented in landlord practice and lease terms across the province.
Step 3 — LEASES ARE WRITTEN ACCORDINGLY	Because AISH income is not assured, landlords write lease clauses that treat non-payment — for any reason — as grounds for immediate eviction proceedings. The program's instability is priced directly into the legal agreement the recipient must sign to obtain housing.
Step 4 — PAYMENT IS WITHHELD WITHOUT NOTICE	AISH withholds payment. The recipient does not know in advance. Rent is due. The lease clause activates. Eviction proceedings begin.
Step 5 — THERE IS NO BUFFER	Conventional financial advice prescribes three to six months of emergency savings. AISH recipients are documented to live $6,004 below Canada's poverty line annually at maximum benefit. There is no surplus from which to save. The buffer cannot be built on the income provided.
Step 6 — EVICTION PROCEEDS	The government's payment failure becomes the recipient's housing crisis. The program designed to provide stability has produced instability. The word "Assured" has produced the opposite of its meaning.

FINDING: *AISH payment instability is not a contributing factor to housing instability. It is the mechanism that produces housing instability — directly, predictably, and through a causation chain the government has never been required to address publicly. Every step in this chain is a program design choice. Every step can be changed.*

2.2 The Savings Impossibility

The advice to maintain a three-to-six month emergency financial buffer is sound. It assumes the following conditions exist:

- Income arrives reliably and predictably each month.
- Income exceeds essential expenses by a sufficient margin to permit saving.
- The gap between income and expenses is stable enough to plan around.

- The person has access to credit or other financial instruments as backup.

For AISH recipients, none of these conditions exist:

CONDITION REQUIRED	AISH REALITY
Reliable monthly income	Payments withheld without notice — reliability is not guaranteed
Income exceeds expenses	Recipients live $6,004 below poverty line annually at maximum benefit
Stable gap for saving	After rent ($1,500–$1,900+) and food ($800–$1,000), deficit is $750–$1,500+/month
Access to credit	Below-poverty income and benefit dependency disqualifies most recipients from credit
Ability to build buffer	Structurally impossible — the math does not permit saving on this income

A program cannot simultaneously keep people below the poverty line AND expect them to maintain the financial reserves that poverty-line income makes impossible to build. That expectation does not reflect personal financial failure. It reflects a program that has never been held accountable for the gap between what it promises and what it delivers.

SECTION 3: THE LEGAL AND RIGHTS FRAMEWORK

Payment withholding without notice, without stated reason, and without a meaningful appeal process raises the following legal and rights concerns:

Section 7 — Canadian Charter of Rights and Freedoms

Security of the person is engaged when government action creates a direct and foreseeable threat to physical security. Unannounced payment withholding that predictably results in eviction — for a population with no financial buffer — creates exactly that threat. The government is not a passive bystander to the housing crisis it precipitates.

Section 15 — Canadian Charter of Rights and Freedoms

The absence of a notice requirement, grace period, or emergency bridge mechanism falls exclusively on persons with disabilities — the only population subject to AISH/ADAP payment rules. Under *Fraser v. Canada* [2020] 3 SCR 113, adverse effects that fall disproportionately on a protected group engage equality rights regardless of whether the policy facially distinguishes between groups.

Alberta Human Rights Act — Section 4

Discrimination in the provision of goods, services, and accommodation on the basis of physical or mental disability is prohibited. A housing market in which AISH recipients face AISH-specific eviction clauses — written in direct response to government-created payment instability — is a housing market that discriminates against persons with disabilities by government design.

Procedural Fairness

Basic administrative law requires that decisions affecting a person's financial stability be accompanied by notice, reasons, and an opportunity to respond. Payment withholding without notice, without stated reason, and without a timely appeal mechanism does not meet this standard.

SECTION 4: WHAT THE GOVERNMENT MUST DO

4.1 30-Day Advance Notice for Payment Changes

Before withholding or reducing any AISH/ADAP payment, the government must provide minimum 30 days written notice with a stated reason and written documentation of the recipient's right to appeal. This is the minimum standard of procedural fairness in any administrative decision affecting basic income.

4.2 Emergency Bridge Payment Within 48 Hours

Where a recipient disputes a withheld payment and rent is imminently due, an emergency bridge payment must be available within 48 hours of a documented request. The government's administrative dispute timeline cannot operate on the recipient's rent schedule.

4.3 Formal Grace Period

A minimum 30-day grace period must be established between any payment withholding and any government-reported non-payment to landlords or housing providers. Recipients must not face eviction as a result of government payment failure during an active dispute.

4.4 Published Withholding Standards

The Government of Alberta must publish clear, public, written standards governing the conditions under which AISH/ADAP payments may be withheld — including the specific triggers, notice requirements, and appeal rights for each. Withholding decisions made without reference to published standards are arbitrary and procedurally unjustifiable.

4.5 Emergency Stabilization Fund

A recipient-accessible emergency stabilization fund must be established to provide bridge support when payment errors, administrative delays, or disputes threaten housing stability. The fund must be accessible without extensive documentation requirements given that the population it serves has complex disabilities and limited administrative capacity.

4.6 Prohibition on AISH-Specific Lease Clauses

The Government of Alberta must address through residential tenancy legislation the practice of writing AISH-specific eviction clauses into leases. Where these clauses are triggered by government payment failure rather than recipient non-payment, they constitute discrimination on the basis of disability and government-facilitated housing instability.

SECTION 5: SUBMISSION TARGETS

This document is submitted to the following. A written response is requested from each.

RECIPIENT	CONTACT	BASIS
Hon. Jason Nixon — Minister, Assisted Living & Social Services	rimbey.rockymountainhouse.sundre@assembly.ab.ca	Program authority — payment withholding policy
Premier Danielle Smith	premier@gov.ab.ca	Executive authority — program design
MLA Marie Renaud, St. Albert	St.Albert@assembly.ab.ca	Engaged respondent — provincial
Alberta Ombudsman	info@ombudsman.ab.ca	Administrative fairness — pending formal decision
Alberta Human Rights Commission	(formal complaint channel)	s.4 AHRA — disability discrimination
Canadian Human Rights Commission	info.com@chrc-ccdp.gc.ca	ss. 7, 15 Charter — federal jurisdiction

SOURCES

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- Government of Alberta — ADAP Program Page, 2026. Transition structure and benefit amounts.
- Maytree — Welfare Incomes Across Canada, 2024. AISH recipients $6,004 below poverty line annually.
- Canada's Food Price Report 2026 — Dalhousie University. Grocery cost benchmarks.

- CMHC / Urbanation — National Rent Report, 2024. Alberta average 1-bedroom $1,500–$1,900+/month.
- Canadian Charter of Rights and Freedoms, ss. 7, 15 — Constitution Act, 1982.
- *Fraser v. Canada (Attorney General)*, [2020] 3 SCR 113 — adverse effects discrimination.
- *Gosselin v. Quebec (Attorney General)*, [2002] 4 SCR 429 — s.7 and vulnerable populations.
- Alberta Human Rights Act, RSA 2000, c A-25.5, s.4 — goods, services, accommodation.
- Alberta Disability System Breakdown — Financial Reality Report, April 2026.
- Alberta Disability System Breakdown — Housing Crisis Report, April 2026.
- Alberta Disability System Breakdown — Interprovincial Mobility & Charter Rights Report, April 2026.

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